



CHAPTER 14

An Act to authorise the Secretary of State to appoint officers available for civilian employment in public services overseas; to make provision as to superannuation in respect of officers so appointed, and to make further provision with respect to the overseas service of police officers; and for purposes connected with the matters aforesaid. [13th March, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) For the purpose of giving effect to arrangements made by the Secretary of State (whether before or after the passing of this Act) with Governments of overseas territories, the Secretary of State may appoint officers to be available for civilian employment in the public services of those territories in accordance with any such arrangements.

Appointment of officers available for public service overseas.

(2) The power to appoint officers under this section shall not be exercisable except with the consent of the Treasury, which may be given either unconditionally or subject to such conditions as the Treasury may determine.

(3) Any such consent (whether conditional or unconditional) may either be given in respect of the appointment of a particular officer, or may be given generally in respect of the appointment (within such limits as may be specified in the consent) of officers of such description, or for such purposes, as may be so specified, or for giving effect to arrangements with a Government so specified, or otherwise as the Treasury may consider appropriate.

(4) A person shall not be appointed by the Secretary of State under this section at a time when he is employed in any capacity under the Government of an overseas territory, unless—

(a) the appointment is made for giving effect to arrangements made (whether before or after the passing of this Act) with that Government, or

(b) in any other case, the appointment is made with the consent of that Government.

(5) A person shall not be taken to be appointed under this section unless a statement to that effect, expressly referring to this Act, is contained in his instrument of appointment.

(6) Subject to the preceding provisions of this section, an officer may be appointed by the Secretary of State under this section subject to such conditions as the Secretary of State may determine, and either for a limited period or indefinitely; and an officer appointed under this section, howsoever he may be employed from time to time, shall continue to hold his appointment thereunder until his appointment is terminated by the Secretary of State, whether on retirement or otherwise, or he resigns or dies, or (in the case of an officer appointed for a limited period) that period comes to an end, whichever first occurs.

(7) In the following provisions of this Act any reference to an officer to whom this Act applies is a reference to an officer who has been appointed by the Secretary of State under this section and for the time being continues to hold that appointment; and for the purposes of this Act a person shall be taken to be serving as an officer to whom this Act applies at any time when, having been so appointed, he continues to hold that appointment, and any reference in this Act to service as such an officer shall be construed accordingly.

(8) An officer to whom this Act applies, in the absence of suitable employment of the kind specified in subsection (1) of this section, may with the consent of the Treasury be made available by the Secretary of State for other employment, while continuing to serve as an officer to whom this Act applies.

Superannuation in respect of service as officer to whom Act applies.

2.—(1) The Secretary of State with the consent of the Treasury may by order make provision for the payment of pensions in respect of service as an officer to whom this Act applies, or for providing and maintaining one or more pension schemes (whether contributory or not) in respect of such service; and any such provision may be made with a view to the payment of pensions either to or in respect of the persons to whom it relates.

(2) An order made under this section may include provision whereby, for the purpose of determining whether a person is eligible for a pension thereunder, or for the purpose of calculating the amount of such a pension, there shall be taken into account

such service or employment (other than service as an officer to whom this Act applies) as may be prescribed by or under the order.

(3) An order under this section may be made so as to provide for the exclusion from the operation of the order of particular cases or classes of cases, or so as to provide for the operation of the order to be different in relation to different cases or classes of cases.

(4) Any order under this section may be varied or revoked by a subsequent order thereunder.

(5) The power to make orders under this section shall be exercisable by statutory instrument; and any instrument containing such an order shall be subject to annulment in pursuance of a resolution of either House of Parliament.

3.—(1) Notwithstanding anything in the Superannuation Acts, 1834 to 1950, service as an officer to whom this Act applies shall not be taken, for the purposes of those Acts, to be service or employment (whether in an established or an unestablished capacity) in the civil service of the State. Provisions as to superannuation under other enactments.

(2) For the purposes of those Acts, service as an officer to whom this Act applies shall be deemed to be service in a public office within the meaning of the Superannuation Act, 1892, if apart from this subsection it would not be service in such a public office.

(3) Section two of the Superannuation (Miscellaneous Provisions) Act, 1948 (which relates to pensions of persons transferring to different employment) shall have effect subject to the amendments specified in the First Schedule to this Act, being amendments for extending the provisions of that section to service as an officer to whom this Act applies.

(4) Without prejudice to any power exercisable by virtue of section eleven of the said Act of 1948 (which enables rules to be made for treating certain overseas employments as approved external service in relation to teachers), the Minister of Education may, with the consent of the Treasury, by rules provide that—

(a) for the purposes of section thirteen of the Teachers (Superannuation) Act, 1925 (which relates to the treatment of approved external service as contributory service in certain circumstances), service as an officer to whom this Act applies shall be treated as approved external service;

(b) for the purposes of section twenty-three of, and the Second Schedule to, the Teachers (Superannuation) Act, 1956 (which makes further provision as to approved external service), service as an officer to whom this Act applies shall be treated as if it were approved external

service as defined in subsection (1) of section thirteen of the said Act of 1925;

and any rules made by virtue of this subsection may include provisions modifying the said section thirteen, or the Second Schedule to the said Act of 1956, in its application to service as such an officer.

(5) Section fifteen of the said Act of 1948 (which contains general provisions as to rules under that Act) shall apply in relation to rules made under the last preceding subsection as it applies in relation to rules under that Act.

(6) Service as an officer to whom this Act applies, in so far as (apart from this subsection) it would not be service in the overseas civil service within the meaning of the Governors' Pensions Act, 1957, shall be deemed to be service in the overseas civil service within the meaning of that Act.

(7) Any Firemen's Pension Scheme brought into operation, whether before or after the passing of this Act, under section twenty-six of the Fire Services Act, 1947, may include, or be varied so as to include, provision whereby, in such circumstances as may be specified in the Scheme, pensions (including allowances and gratuities) may be paid thereunder to or in respect of persons who—

(a) have after the passing of this Act retired from employment as members of fire brigades maintained in pursuance of that Act, or from other employment treated for the purposes of the Scheme as if it were employment as a member of such a fire brigade, and

(b) after so retiring have served as officers to whom this Act applies;

and so much of subsection (3) of the said section twenty-six as relates to the circumstances in which a pension may be provided under such a Scheme shall not apply to any pension for which provision is made in accordance with this subsection.

Further
provisions as to
superannuation.

4.—(1) Where an officer to whom this Act applies is a participant in any pension provision made otherwise than by virtue of this Act, the Secretary of State may pay any contribution which, in accordance with the terms of that pension provision, is payable by or in respect of that officer as a participant therein.

(2) The Secretary of State may pay, to or in respect of persons who are serving or have served as officers to whom this Act applies, such pensions or contributions in respect of pensions (not being pensions or contributions payable by the Secretary of State by virtue of any enactment other than this subsection) as may appear to him to be appropriate for giving effect to any such arrangements as are mentioned in subsection (1) of section one of this Act.

(3) In this section "pension provision" means any law, scheme or instrument whereby provision is made for the payment of pensions, and "participant", in relation to a pension provision, means a person to whom, or in respect of whom, a pension may become payable thereunder.

5.—(1) Where a member of a home police force is, with the consent of the appropriate authority, appointed under section one of this Act for a limited period, the Secretary of State may direct that the provisions of this section shall have effect in respect of his service in pursuance of that appointment as an officer to whom this Act applies.

Special provision as to police officers.

(2) Where by virtue of such a direction the provisions of this section have effect in respect of a person's service as an officer to whom this Act applies—

- (a) the provisions of section two of the Police (Overseas Service) Act, 1945 (which relates to members of home police forces who engage for a period of overseas service within the meaning of that Act), and
- (b) where applicable, the provisions of subsections (2) to (5) of section fourteen of the Police Act, 1946, or the provisions of section twenty-three of the Police (Scotland) Act, 1956 (which relate respectively to a member of a home police force who engages for such a period of overseas service, where, during that engagement, his force is transferred under an amalgamation scheme),

shall apply to him, in respect of that service, as they would have applied if that service had been a period of overseas service, within the meaning of the said Act of 1945, for which that person had engaged as mentioned in subsection (1) of section two of that Act:

Provided that, in the application of subsection (2) of section two of that Act to a person's service as an officer to whom this Act applies, any reference to a disciplinary authority established by regulations made under section one of that Act shall be construed as a reference to such authority as, whether before or during that service, may be designated in that behalf by the Secretary of State.

(3) For the purposes of the application of the Police Pensions Act, 1948, to a person in respect of whom a direction has been given under this section, the provisions of that Act shall be construed subject to the modifications set out in the Second Schedule to this Act.

(4) In this section "home police force" and "appropriate authority" have the same meanings as in the Police (Overseas Service) Act, 1945.

Financial provisions.

6.—(1) All expenses incurred by the Secretary of State in consequence of the provisions of this Act or of any order made thereunder shall be defrayed out of moneys provided by Parliament.

(2) All sums received by the Secretary of State in consequence of the provisions of this Act or of any order made thereunder, or in pursuance of any such arrangements as are referred to in subsection (1) of section one of this Act, shall be paid into the Exchequer.

(3) There shall also be paid out of moneys provided by Parliament, or paid into the Exchequer, as the case may be, any increase attributable to the provisions of this Act in the sums which, under any other enactment, are payable out of moneys so provided, or payable into the Exchequer, as the case may be.

Interpretation.

7.—(1) In this Act “overseas territory” means any territory or country outside the United Kingdom; “civilian employment” means employment otherwise than in military, naval or air force duties; and “pension”, in relation to a person, means any contributory or non-contributory pension, of any kind whatsoever, payable to or in respect of him, or a lump sum or gratuity so payable, whether by way of compensation or otherwise, or a return of contributions, with or without interest thereon or any other addition thereto.

(2) For the purposes of this Act a person shall be taken to be employed in the public services of an overseas territory at any time when—

- (a) he is employed in any capacity under the Government of that territory, or under any municipal or other local authority therein, or
- (b) he is employed, in circumstances not falling within the preceding paragraph, by a body corporate established for any public purpose in that territory by an enactment of a legislature empowered to make laws for that territory, or
- (c) he is the holder of a public office in that territory, in circumstances not falling within either of the preceding paragraphs.

(3) References in this Act to the Government of an overseas territory include references to a Government constituted for two or more overseas territories, and to any authority established for the purpose of providing or administering services which are common to, or relate to matters of common interest to, two or more such territories.

(4) Except in so far as the context otherwise requires, any reference in this Act to an enactment shall be construed as a reference to that enactment as amended or extended by or under any other enactment.

Short title.

8: This Act may be cited as the Overseas Service Act, 1958.

SCHEDULES

FIRST SCHEDULE

Section 3.

AMENDMENTS OF SECTION TWO OF SUPERANNUATION
(MISCELLANEOUS PROVISIONS) ACT, 1948

In subsection (2), at the end of paragraph (e), there shall be added the words " and

(f) employment as an officer to whom the Overseas Service Act, 1958, applies ".

In subsection (3), after paragraph (v), there shall be inserted—

" (vi) in relation to the class specified in paragraph (f) of the said subsection (2), the Secretary of State acting with the consent of the Treasury ".

In subsection (4), in paragraph (b), after the words " paragraph (a) " there shall be inserted the words " or paragraph (f) ".

After subsection (8), there shall be added the following subsection:—

" (9) For the purposes of this section any person who, for the purposes of the Overseas Service Act, 1958, is for the time being serving as an officer to whom that Act applies (as defined in subsection (7) of section one of that Act) shall be deemed (whatever his employment) to be employed as an officer to whom that Act applies ".

SECOND SCHEDULE

Section 5.

MODIFICATIONS OF POLICE PENSIONS ACT, 1948

Any reference (however expressed) to membership of a police force, or to service or employment in a police force, shall be construed as including a reference to service as an officer to whom this Act applies, being service in respect of which the provisions of section five of this Act have effect.

Any reference to the police authority, in relation to a period of service as an officer to whom this Act applies, being service in respect of which the provisions of section five of this Act have effect, shall be construed as a reference to the Secretary of State.

Any reference to a person such as is mentioned in subsection (1) of section one of the Police (Overseas Service) Act, 1945, shall be construed as including a reference to an officer to whom this Act applies, whose service as such an officer is for the time being service in respect of which the provisions of section five of this Act have effect.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Superannuation Act, 1892... ..	55 & 56 Vict. c. 40.
Teachers (Superannuation) Act, 1925	15 & 16 Geo. 5. c. 59.
Police (Overseas Service) Act, 1945	9 & 10 Geo. 6. c. 17.
Police Act, 1946	9 & 10 Geo. 6. c. 46.
Fire Services Act, 1947	10 & 11 Geo. 6. c. 41.
Police Pensions Act, 1948	11 & 12 Geo. 6. c. 24.
Superannuation (Miscellaneous Provisions) Act, 1948	11 & 12 Geo. 6. c. 33.
Police (Scotland) Act, 1956	4 & 5 Eliz. 2. c. 26.
Teachers (Superannuation) Act, 1956	4 & 5 Eliz. 2. c. 53.
Governors' Pensions Act, 1957	5 & 6 Eliz. 2. c. 62.

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